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PREMIUM NOTES

UPSC — Polity Notes

UPSC Test Series — StuDy

High-yield facts, formulas and trap-radar — made for the real exam hall.

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UPSC — Polity Notes

Constitutional Framework — Deeper Map

- Basic structure (Kesavananda 1973): Parliament can amend (Art 368) but cannot destroy the basic structure — supremacy of Constitution, republic/democratic form, secularism, separation of powers, federal character, judicial review (Minerva Mills reaffirmed).
- Citizenship: Part II (Art 5–11); Citizenship Act 1955 — by birth, descent, registration, naturalisation, territory incorporation; CAA 2019 (religion-based fast-track for 6 communities from Pakistan/Bangladesh/Afghanistan, cut-off 31 Dec 2014). Single citizenship (unlike USA). OCI ≠ dual citizenship.
- Territory: Art 1 (Union of States — 'Union' because indestructible union of destructible states), Art 2 (admit/establish new states), Art 3 (Parliament can alter area/name/boundaries — state legislature's views not binding; presidential recommendation + reference to legislature needed).
- Judicial doctrines: eclipse (pre-constitutional laws), severability, waiver (not allowed for FRs), territorial nexus, pith & substance, colourable legislation, harmonious construction.

Rights, Duties, Principles

- Art 19 freedoms: speech & expression, assemble peacefully WITHOUT ARMS, form associations/unions, move freely, reside & settle, practise profession/trade. Restrictions: Art 19(2)–(6) grounds — 'reasonable restrictions'; internet shutdowns tested on proportionality (Anuradha Bhasin).
- Art 21 expansion: privacy (Puttaswamy 2017 — fundamental right), clean environment, livelihood, speedy trial, education (before 21A — Unnikrishnan), choice of partner (Shafin Jahan), die with dignity/passive euthanasia (Common Cause 2018).
- DPSPs: Art 38 (welfare state), 39 (resource distribution), 39A (free legal aid), 40 (village panchayats), 41–43 (work, living wage, cottage industries), 43B (co-operatives — 97th Amd), 44 (UCC), 45 (early childhood care), 47 (health, prohibition), 48 (agriculture/animal husbandry), 48A (environment), 49 (monuments), 50 (separation of judiciary), 51 (international peace).
- Fundamental Duties (51A): added by 42nd Amd 1976 on Swaran Singh Committee (originally 10; 11th added by 86th Amd — parent's duty to provide education opportunities to child 6–14). Non-justiciable; borrowed from USSR.

Institutions & Processes

- Parliamentary devices: Question Hour (first hour; starred/unstarred/short notice), Zero Hour (Indian innovation, 1962), motions — adjournment, censure (against government), no-confidence (LS only, Art 75 collective responsibility), cut motions (policy, economy, token).
- Committees: PAC (22 members — 15 LS + 7 RS; chair from opposition by convention; examines CAG reports), Estimates (30, LS only), Public Undertakings (22), Departmentally Related Standing Committees (24 — 31 members each), Ethics, Privileges. Joint Parliamentary Committee = ad hoc.
- Budget process: Art 112 (Annual Financial Statement), Consolidated Fund (Art 266 — charged + voted), Contingency Fund (267), Public Account (266(2)); demands for grants — only LS votes; Appropriation Bill; Finance Bill; FRBM Act 2003 (fiscal deficit targets). Railway budget merged 2017; budget date advanced to 1 Feb (2017).

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- Federal features vs unitary tilt: dual polity, written constitution, division of powers (7th Schedule — Union 100, State 61, Concurrent 52 entries approx.), independent judiciary vs single citizenship, All-India Services, emergency converting to unitary, integrated judiciary, Governor's office.
- Election Commission: Art 324; CEC removal like SC judge; others on CEC recommendation; Model Code (not statutory — consensus evolved); EVM-VVPAT (100% VVPAT slips, counting mandated for 5 random booths per segment — SC ruling); NOTA (PUCL 2013).

Local Governance & Recent Themes

- Panchayat finance: own revenue is tiny — dependence on Finance Commission grants (15th FC: ₹2.36 lakh crore to RLBs 2021–26, tied/untied 40:60 pattern); SFC recommendations (Art 243I/243Y). PESA 1996 (Scheduled Areas — Gram Sabha powers over land/resources).
- Urban bodies: 74th Amd types; District Planning Committee (243ZD), Metropolitan Planning Committee (243ZE); municipal bonds; AMRUT, Smart Cities Mission, SBM-Urban.
- Tribunals: Art 323A (administrative — CAT/SAT) & 323B (other matters); NGT Act 2010 (benches — principal New Delhi); appellate tribunal rationalisation debates; tribunal independence (Madras Bar Association cases).
- Anti-defection: 10th Schedule (52nd Amd 1985); disqualification decided by Speaker/Chairman (reviewable — Kihoto Hollohan); 91st Amd capped ministry size + barred defectors from ministerial office until re-election; split exception (2/3 merger) remains, 1/3 split removed.

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